



A fresh approach to buying & selling your home.



LOVE HOMES
CONVEYANCING

YOUR **CONVEYANCING** QUOTE

YOUR QUOTE

Excl. Gov. Fees

YOUR DETAILS

YOUR PURCHASE

Buyers
1

Call Us
02 9381 9118



Our Legal Fees	Net	GST	Total
Our Legal Fee			
Subtotal			
Disbursements	Net	GST	Total
Estimated Searches & Enquiries			
Verification of Identity			
Subtotal			
Discounts	Net	GST	Total
Repeat Clients - 10%			
Subtotal			
Total			

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IMPORTANT INFORMATION

Search costs

Searches required may vary from region to region. Search packs do not include certain regional searches which will attract an additional fee. We will confirm if the property you are buying is in an area where additional searches are recommended.

Cost Agreement

This document, together with our General Terms of Business, sets out the terms of our offer to provide legal services to you and constitutes our costs agreement and disclosure pursuant to the *Legal Profession Uniform Law (NSW)* (the Uniform Law).

A. SCOPE OF WORK

The **work** that we will do is as follows:

- advise you in relation to the proposed purchase generally;
- review up to two (2) contracts of sale within the quoted price;
- do a high level for main risks of a strata report (if applicable);
- request any contract amendments with the vendor's solicitor;
- liaise with the vendor's solicitor in relation to exchange;
- arrange exchange of contracts if required;
- prepare all legal documents to effect the transfer of title to your name;
- prepare and lodge your transfer duty assessment;
- liaise with the vendor's solicitor, your broker and your bank in relation to settlement; and
- report to you once settlement is complete.

(collectively, **Work**).

B. PROFESSIONAL FEES

If you exchange contracts and complete the purchase we will charge you the legal fee shown on your quote (including GST) to complete the matter and settle the purchase.

If the purchase does not proceed to exchange, we may charge a fee of (plus GST) to cover our cost of reviewing the contract and other work, plus whatever disbursements have been incurred.

C. WHAT IS NOT INCLUDED

Negotiations - Our fee estimate is for a standard transaction that completes all steps successfully and assumes there will be minimal negotiations in relation to the terms of the contract.

Our fee does not include the following:

- extensive negotiations and/ or we are required to draft substantial amendments to the contract before exchange;
- dealing with issues of defects in the property and rectification of the same;
- either issuing or receiving a Notice to Complete when settlement has not

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occurred by the contractual settlement date; or

- additional negotiations in relation to any matter pertaining to the settlement.

We will charge for such work on a time cost basis at the applicable hourly rate.

Contract Reviews - additional reviews after the initial two (2) included reviews are chargeable. We will advise you of the fee before incurring these.

Tax/structuring Advice - The Work does not include any tax or structuring advice (particularly CGT advice or land tax advice) in relation to the transaction. You will need to seek independent advice from your accountant in that regard.

No SMSF - I assume you are intending to buy the property in your own names and not in the name of your SMSF. Additional costs will be incurred if you decide otherwise.

Financial Advice - I note we are not qualified financial advisors so cannot offer any advice in that regard. You should seek your own independent advice in that regard.

Deposit and Interim Invoice

Please make a deposit of \$400.00 to our trust account (details below upon acceptance of our quote to start the process of preparing your matter. Upon exchange we will issue an interim invoice to cover our initial legal costs and disbursements, and the final balance will be included in the final settlement figures.

Account: Love Homes Conveyancing

BSB: 062 000

Account: 1932 9785

We aim to be 100% transparent and upfront in our pricing so you know exactly how much you will be paying us before you start working with us. The costs disclosed on the quote are the expected costs of a standard transaction. It may be that your particular circumstances require additional disbursements to be incurred. If this happens, we will always discuss these with you and advise you of any such costs that will be payable by you. The quote is valid for 30 days subject to receiving your instruction. Within this period our fees will not increase. Please note that fees applicable to the Land Registry or other providers will adjust according to the most recent scale at the time your matter completes should changes have been made from the date of your instruction.

Our fee is based upon the information provided. If this is incorrect or changes, you should let us know immediately.

COSTS DISCLOSURE AND COSTS AGREEMENT

1. Costs - how calculated

1.1 Professional fees

See our covering letter.

1.2 Expenses and disbursements

We may be liable to pay fees to others on your behalf. These fees include but are not limited to search fees, property certificates and inspection fees.

We will ask you to make an advance payment of \$300 to us for these fees. We may derive benefits/rewards from third party contractors and/or suppliers or by the means of payment for disbursements incurred on your behalf.

2. GST

Where applicable, GST is payable on our professional fees and expenses and will be clearly shown on our tax invoices. By accepting these terms you agree to pay us an amount equivalent to the GST imposed on these charges.

3. Billing arrangements

We may issue a tax invoice at exchange of contracts and will issue a final invoice due at settlement, and we may issue additional tax invoices depending on the nature of the work. All tax invoices are due and payable 7 days from the date of the tax invoice. You consent to us sending our tax invoices to you electronically at your usual email address or mobile phone number as specified by you.

4. Acceptance of Offer

You may accept the Costs Disclosure and Costs Agreement by:

- a) electronically accepting this document per the instructions or;
- b) continuing to instruct us. Upon acceptance you agree to pay for our services on these terms.

5. Authorisation to Transfer Money from Trust Account

You authorise us to receive directly into our trust account any settlement amount, or money received from any source in furtherance of your work, and to pay our professional fees, internal expenses and disbursements in accordance with the provisions of Rule 42 of the Uniform General Rules. A trust statement will be forwarded to you upon completion of the matter.

6. Interest on unpaid costs

Interest at the maximum rate prescribed in Rule 75 of the Legal Profession Uniform General Rules 2015 ("Uniform General Rules") (being the Cash Rate Target set by the Reserve Bank of Australia plus 2%) will be charged on any amounts unpaid after the expiry of 30 days after a tax invoice is given to you. Our tax invoices will specify the interest rate to be charged.

7. Your Rights

It is your right to:

- (a) negotiate a costs agreement with us;
- (b) negotiate the method of billing (e.g. task based or time based);
- (c) request and receive an itemised bill within 30 days after a lump sum bill or partially itemised bill is payable;
- (d) seek the assistance of the designated local regulatory authority (the NSW Commissioner) in the event of a dispute about legal costs; and

- (e) be notified as soon as is reasonably practicable of any substantial change to any matter affecting costs. If you request an itemised bill and the total amount of the legal costs specified in it exceeds the amount previously specified in the lump sum bill for the same matter, the additional costs may be recovered by us only if:

- (i) when the lump sum bill is given, we inform you in writing that the total amount of the legal costs specified in any itemised bill may be higher than the amount specified in the lump sum bill, and
- (ii) the costs are determined to be payable after a costs assessment or after a binding determination under section 292 of the Uniform Law.

Nothing in these terms affects your rights under the Australian Consumer Law.

8. Your Rights in relation to a Dispute concerning Costs

If you have a dispute in relation to any aspect of our legal costs you have the following avenues of redress:

- (a) in the first instance we encourage you to discuss your concerns with us so that any issue can be identified and we can have the opportunity of resolving the matter promptly and without it adversely impacting on our business relationship;
- (b) you may apply to the Manager, Costs Assessment located at the Supreme Court of NSW for an assessment of our costs. This application must be made within 12 months after the bill was provided or request for payment made or after the costs were paid.

9. Substantial changes to disclosure

You will be informed, as soon as reasonably practicable, of any substantial changes to anything contained in this costs disclosure.

10. Progress reports

Upon request, we will provide written progress reports at reasonable intervals at our normal charge-out rates. We will also provide, free of charge, written reports on the legal costs incurred by you since date of our last bill of costs.

11. Engagement of another professional service

We may need to engage the services of another professional to provide specialist advice or services on your behalf. We will consult you as to the terms of that engagement, but you may be asked to enter into a costs agreement directly with that professional.

12. Authority

You authorise us to use relevant personal and financial information to contact and deal with third parties such as your lender or broker, and to receive information from them for the purposes of completing the transaction.

13. Third parties

From time to time we may engage third party contractors to process data relating to your transaction on our systems in order to manage workload and ensure the fast progression of your matter.

14. Affiliates

Our affiliate network may include banks, service providers, real estate agents, mortgage brokers, insurance providers, utility companies and others in the property industry. Affiliates may provide data or recommend our services for the provision of conveyancing services. We may make payments to Affiliates not exceeding 13% of our legal fee for their services.

15. Utility Connections & Home Moving Services

We may invite you to use a utility connection/moving service provided by "Move Me In". The use of this service is at your full discretion and is considered a separate service in which you must opt-in to use and will constitute a separate service agreement between you and Move Me In. Any invitation to use the services provided by Move Me In, does not constitute a recommendation by us of those service and we provide no guarantees about these services. If you do elect to use this service, we will receive a commission payment from Move Me In per the estimated ranges below:

- Electricity – \$50.00 to \$55.00
- Natural Gas – \$40.00 to \$45.00
- LPG – \$15.00
- Phone/Internet – \$40.00
- Removalist – \$15.00
- Storage – \$15.00

16. Retention and Copying of Your Documents

On completion of your work, the electronic files will be retained for the statutory period of seven (7) years.. Your (express or implied) agreement to these terms constitutes your authority for us to destroy the file 7 years after the date of our final tax invoice. We are entitled to retain your documents while there is money owing to us for our costs.

On completion of your work or following termination (by either party) of our services you will be liable for the cost of retrieving documents in storage and also any photocopying charges we incur and our professional fees in connection with the provision of your file to you or as directed by you.

Our retrieval fee is currently \$20 plus GST.

17. Privacy

We are required and committed to protecting your personal information in accordance with our obligations under the Privacy Act 1988 and the National Privacy Principles.

Personal information about you, provided by you and other sources, is protected under the Privacy Amendment (Private Sector) Act 2000 (Cth). Disclosure of such information may be compelled by law (e.g. under the Social Security Act 1991 (Cth)). You also authorise us to disclose such information where necessary to others in furtherance of your claim/matter (e.g. within the law practice; to the Court; to the other party or parties to litigation; and to valuers, experts, barristers).

18. Termination by You

You may terminate our services by written notice at any time. However, if you do so you will be required to pay our costs incurred up to the date of termination (including if the matter is litigious, any cancellation fees or other fees such as hearing allocation fees for which we remain responsible).

19. Termination by Us

We may cease to act for you or refuse to perform further work, including:

- (a) while any of our tax invoices remain unpaid;
- (b) if you do not within 7 days comply with any request to pay an amount in respect of disbursements or future costs;
- (c) if you fail to provide us with clear and timely instructions to enable us to advance your matter, for example, compromising our ability to comply with Court directions, orders or practice notes;
- (d) if you refuse to accept our advice;
- (e) if you indicate to us or we form the view that you have lost confidence in us;
- (f) if there are any ethical grounds which we consider require us to cease acting for you, for example a conflict of interest;
- (g) for any other reason outside our control which has the effect of compromising our ability to perform the work required within the required timeframe; or
- (h) if in our sole discretion we consider it is no longer appropriate to act for you; or
- (i) for just cause.

We will give you reasonable written notice of termination of our services. You will be required to pay our costs incurred up to the date of termination.

20. Lien

Without affecting any lien to which we are otherwise entitled at law over funds, papers and other property of yours:

- (a) we shall be entitled to retain by way of lien any funds, property or papers of yours, which are from time to time in our possession or control, until all costs, disbursements, interest and other moneys due to the firm have been paid; and
- (b) our lien will continue notwithstanding that we cease to act for you

21. Confidentiality

At all times we will seek to maintain the confidentiality of your information. However, we may be permitted or required by law to disclose confidential information. We may also, on a confidential basis, provide your information to third parties where we consider it is appropriate for the proper conduct of your matter.

20. Sending Material by Email

We are able to send and receive electronic mail. However, as such mail is not secure it may be copied, recorded, read or interfered with by third parties while in transit. If you ask us to transmit any document electronically, you release us from any claim you may have as a result of any unauthorised copying, recording, reading or interference with that document after transmission, for any delay or non-delivery of any document and for any damage caused to your system or any files by a transfer.

21. Governing Law

The law of New South Wales governs these terms and legal costs in relation to any matter upon which we are instructed to act.

OUR MISSION

We are not your typical conveyancing law firm, we do things differently. We are bold, confident and love picking up the phone to talk to our clients.

Our customers love us and we love them right back!



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